

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER 2. CONTRACT NUMBER 3. AWARD/EFFECTIVE DATE 4. ORDER NUMBER 7. FOR SOLICITATION INFORMATION CALL:			PAGE 1 OF 5. SOLICITATION NUMBER 6. SOLICITATION ISSUE DATE 22 August 2025 8. OFFER DUE DATE/ LOCAL TIME b. TELEPHONE NUMBER (<i>No collect calls</i>)		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: _____ % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ ☐ SERVICE-DISABLED ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A)		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS 13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST ☐ INVITATION ☐ FOR ☐ FOR QUOTE ☐ FOR BID ☐ PROPOSAL (RFQ) (IFB) (RFP)	
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
<i>(Use Reverse and/or Attach Additional Sheets as Necessary)</i>					
25. ACCOUNTING AND APPROPRIATION DATA			26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)		
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED ☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED . _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Solicitation/Contract Form

Office of Small Business Program (OSBP) Support Services

Product Service Code: R499

Date: 22 August 2025

Supplies or Services & Prices or Costs**Additional Information/Notes**

Line Items	Supplies / Services	Quantity	Unit	Unit Price	Amount
Line Item 0001	Business Execution Support In accordance with PWS Section 5.2 Pricing Arrangement: Firm Fixed Price	12	Months		
line Item 0002	Strategic Communication Support In accordance with PWS Section 5.3 Pricing Arrangement: Firm Fixed Price	12	Months		
Line Item 0003	Mentor Protege Program Support In accordance with PWS Sections 5.6 and 5.7 Pricing Arrangement: Firm Fixed Price	12	Months		
Line Item 0004	Travel In accordance with PWS Section 1.8 Pricing Arrangement: Firm Fixed Price	1	Job	\$800.00	\$800.00
Option Line Item 1001	Option Period 1 Business Execution Support In accordance with PWS Section 5.2 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 1002	Option Period 1 Strategic Communication Support In accordance with PWS Section 5.3 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 1003	Option Period 1 Mentor Protege Program Support In accordance with PWS Sections 5.6 and 5.7 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 1004	Option Period 1 Travel In accordance with PWS Section 1.8 Pricing Arrangement: Firm Fixed Price	1	Job	\$800.00	\$800.00
Option Line Item 2001	Option Period 2 Business Execution Support In accordance with PWS Section 5.2 Pricing Arrangement: Firm Fixed Price	12	Months		
	Option Period 2 Strategic Communication Support				

Option Line Item 2002	In accordance with PWS Section 5.3 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 2003	Option Period 2 Mentor Protege Program Support In accordance with PWS Sections 5.6 and 5.7 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 2004	Option Period 2 Travel In accordance with PWS Section 1.8 Pricing Arrangement: Firm Fixed Price	1	Job	\$800.00	\$800.00
Option Line Item 3001	Option Period 3 Business Execution Support In accordance with PWS Section 5.2 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 3002	Option Period 3 Strategic Communication Support In accordance with PWS Section 5.3 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 3003	Option Period 3 Mentor Protege Program Support In accordance with PWS Sections 5.6 and 5.7 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 3004	Option Period 3 Travel In accordance with PWS Section 1.8 Pricing Arrangement: Firm Fixed Price	1	Job	\$800.00	\$800.00
Option Line Item 4001	Option Period 4 Business Execution Support In accordance with PWS Section 5.2 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 4002	Option Period 4 Strategic Communication Support In accordance with PWS Section 5.3 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 4003	Option Period 4 Mentor Protege Support In accordance with PWS Sections 5.6 and 5.7 Pricing Arrangement: Firm Fixed Price	12	Months		
	Option Period 4				

Option Line Item 4004	Travel In accordance with PWS Section 1.8 Pricing Arrangement: Firm Fixed Price	1	Job	\$800.00	\$800.00
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Packaging and Marking

Inspection and Acceptance

Deliveries or Performance

From 30 Sep 2025 to 29 Sep 2026

Contractor

Destination

Line Item	Delivery Schedule	Quantity	Address and POC
Line Item 0001	Period of Performance From 30 Sep 2025 To 29 Sep 2026	12 Months	
Line Item 0002	Period of Performance From 30 Sep 2025 To 29 Sep 2026	12 Months	
Line Item 0003	Period of Performance From 30 Sep 2025 To 29 Sep 2026	12 Months	
Line Item 0004	Period of Performance From 30 Sep 2025 To 29 Sep 2026	1 Job	
Option Line Item 1001	Period of Performance From 30 Sep 2026 To 29 Sep 2027	12 Months	
Option Line Item 1002	Period of Performance From	12 Months	

	30 Sep 2026 To 29 Sep 2027		
Option Line Item 1003	Period of Performance From 30 Sep 2026 To 29 Sep 2027	12 Months	
Option Line Item 1004	Period of Performance From 30 Sep 2026 To 29 Sep 2027	1 Job	
Option Line Item 2001	Period of Performance From 30 Sep 2027 To 29 Sep 2028	12 Months	
Option Line Item 2002	Period of Performance From 30 Sep 2027 To 29 Sep 2028	12 Months	
Option Line Item 2003	Period of Performance From 30 Sep 2027 To 29 Sep 2028	12 Months	
Option Line Item 2004	Period of Performance From 30 Sep 2027 To 29 Sep 2028	1 Job	
Option Line Item 3001	Period of Performance From 30 Sep 2028 To 29 Sep 2029	12 Months	

Option Line Item 3002	Period of Performance From 30 Sep 2028 To 29 Sep 2029	12 Months	
Option Line Item 3003	Period of Performance From 30 Sep 2028 To 29 Sep 2029	12 Months	
Option Line Item 3004	Period of Performance From 30 Sep 2028 To 29 Sep 2029	1 Job	
Option Line Item 4001	Period of Performance From 30 Sep 2029 To 29 Sep 2030	12 Months	
Option Line Item 4002	Period of Performance From 30 Sep 2029 To 29 Sep 2030	12 Months	
Option Line Item 4003	Period of Performance From 30 Sep 2029 To 29 Sep 2030	12 Months	
Option Line Item 4004	Period of Performance From 30 Sep 2029 To 29 Sep 2030	1 Job	

Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Submit 2 in 1

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Submit 2 in 1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>HT0073</u>
Issue By DoDAAC	<u>HT0011</u>
Admin DoDAAC	<u>HT0011</u>
Inspect By DoDAAC	_____
Ship To Code	_____
Ship From Code	_____
Mark For Code	_____
Service Approver (DoDAAC)	<u>HT0075</u>
Service Acceptor (DoDAAC)	<u>HT0075</u>
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____

Other DoDAAC(s)	_____
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(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

To Be Determined

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Special Contract Requirements

Contract Clauses

252.219-7010 Notification of Competition Limited to Eligible 8(a) PARTICIPANTS--PARTNERSHIP agreement (OCT 2019)

- (a) Offers are solicited only from small business concerns expressly certified by the Small Business Administration (SBA) for participation in SBA's 8(a) Program and which meet the following criteria at the time of submission of offer:
- (1) The Offeror is in conformance with the 8(a) support limitation set forth in its approved business plan.
 - (2) The Offeror is in conformance with the Business Activity Targets set forth in its approved business plan or any remedial action directed by SBA.
 - (3) If the competition is to be limited to 8(a) concerns within one or more specific SBA regions or districts, then the offeror's approved business plan is on the file and serviced by Not Identified by SBA. Specific SBA regions are not identified.
- (b) By submission of its offer, the Offeror represents that it meets all of the criteria set forth in paragraph (a) of this clause.
- (c) Any award resulting from this solicitation will be made directly by the Contracting Officer to the successful 8(a) offeror selected through the evaluation criteria set forth in this solicitation.
- (d)(1) Unless SBA has waived the requirements of paragraphs (d)(1)(i) through (iii) and (d)(2) of this clause in accordance with 13 CFR 121.1204, a small business concern that provides an end item it did not manufacture, process, or produce, shall--
- (i) Provide an end item that a small business has manufactured, processed, or produced in the United States or its outlying areas; for kit assemblers, see paragraph (d)(2) of this clause instead;
 - (ii) Be primarily engaged in the retail or wholesale trade and normally sell the type of item being supplied; and
 - (iii) Take ownership or possession of the item(s) with its personnel, equipment, or facilities in a manner consistent with industry practice; for example, providing storage, transportation, or delivery.
- (2) When the end item being acquired is a kit of supplies, at least 50 percent of the total cost of the components of the kit shall be manufactured, processed, or produced by small businesses in the United States or its outlying areas.
- (3) The requirements of paragraphs (d)(1)(i) through (iii) and (d)(2) of this clause do not apply to construction or service contracts.
- (e) The Contractor To Be Determined will notify the Defense Health Agency Contracting Officer in writing immediately upon entering an agreement (either oral or written) to transfer all or part of its stock or other ownership interest to any other party.
- (End of clause)

252.219-7011 NOTIFICATION TO DELAY PERFORMANCE (JUN 1998)

The Contractor shall not begin performance under this purchase order until 2 working days have passed from the date of its receipt. Unless the Contractor receives notification from the Small Business Administration that it is ineligible for this 8(a) award, or otherwise receives instructions from the Contracting Officer, performance under this purchase order may begin on the third working day following receipt of the purchase order. If a determination of ineligibility is issued within the 2-day period, the purchase order shall be considered canceled.

(End of clause)

PD 03-03 ENCLOSURE 2 - IMPROPER BUSINESS PRACTICES AND PERSONAL CONFLICTS OF INTEREST (AUGUST 21, 2014)

H.[X].1 DFARS 252.203-7000, Requirements Relating to Compensation of Former DoD Officials (Sep 2011)

- (a) Definition. "Covered DoD official," as used in this clause, means an individual that--
- (1) Leaves or left DoD service on or after January 28, 2008; and
 - (2) (i) Participated personally and substantially in an acquisition as defined in 41 U.S.C. 131 with a value in excess of \$10 million, and serves or served--
 - (A) In an Executive Schedule position under subchapter II of chapter 53 of Title 5, United States Code;
 - (B) In a position in the Senior Executive Service under subchapter VIII of chapter 53 of Title 5, United States Code; or
 - (C) In a general or flag officer position compensated at a rate of pay for grade O-7 or above under section 201 of Title 37, United States Code; or
 - (ii) Serves or served in DoD in one of the following positions: program manager, deputy program manager, procuring contracting officer, administrative contracting officer, source selection authority, member of the source selection evaluation board, or chief of a financial or technical evaluation team for a contract in an amount in excess of \$10 million.

(b) The Contractor shall not knowingly provide compensation to a covered DoD official within 2 years after the official leaves DoD service; without first determining that the official has sought and received, or has not received after 30 days of seeking, a written opinion from the appropriate DoD ethics counselor regarding the applicability of post-employment restrictions to the activities that the official is expected to undertake on behalf of the Contractor.

(c) Failure by the Contractor to comply with paragraph (b) of this clause may subject the Contractor to rescission of this contract, suspension, or debarment in accordance with 41 U.S.C. 2105(c)

(End of clause)

PD 09-01 ENCLOSURE 3 - ORGANIZATIONAL CONFLICTS OF INTEREST (APRIL 23, 2015)

H.[X].1 The Contractor's attention is directed to FAR, Subpart 9.5, "Organizational and Consultant Conflicts of Interest." DHA has made a determination that an actual or significant potential organizational conflict of interest exists, or the nature of the work to be performed may create an actual or significant potential organizational conflict of interest in future acquisitions.

H.[X].2 For the purpose of these clauses, the term "Contractor" means the contractor, its subsidiaries, affiliates, partners, market consultants, as defined by FAR, Subpart 9.501, or any of its successors or assignees.

H.[X].3 Insert Option 1-5 (as applicable) when the nature of the work to be performed may create an actual or significant potential organizational conflict of interest in future acquisitions.

Option 4: The Contractor will participate in the evaluation of the proposals, products or services of other companies. To avoid conflicts which may create bias ground rules, impair the Contractor's objectivity, or give the Contractor an unfair competitive advantage, it is agreed that the Contractor is precluded from award of any supply or service contract or subcontract related said technical evaluations. This restriction shall be effective for one year after expiration of any contract resulting from participation in the evaluation process identified in this option.

H.[X].4 It may become necessary in the performance of this contract to review proprietary information from other contractors. The Contractor shall protect all proprietary information from unauthorized use or disclosure and refrain from using the information for any purpose other than that for which it was furnished. At the request of the Contracting Officer, the Contractor agrees to execute agreements with third party companies furnishing data in connection with work performed under this contract. Safeguards shall be implemented to restrict access to proprietary information and to avoid, neutralize, or mitigate potential conflicts of interest. Non-disclosure agreements shall be completed by the Contractor, all employees, and subcontractors who obtain access to proprietary information, and provided to the Contracting Officer.

H.[X].5 The Contractor agrees that if an actual or potential organizational conflict of interest is discovered after the award of this contract, the Contractor will immediately notify the Contracting Officer, in writing, of the nature of the conflict. The Contractor shall submit a mitigation plan to the Contracting Officer within 30 days of notification, outlining the actions the Contractor has taken or proposes to take to avoid, neutralize, or mitigate the actual or potential organizational conflict of interest.

H.[X].6 The above restrictions shall be included in all subcontracts, teaming arrangements, and other agreements calling for performance of work which is subject to the organizational conflict of interest restrictions identified in these clauses.

H.[X].7 The Contractor acknowledges the full force and effect of the above clauses. The Government reserves the right, in case of a breach, misrepresentation or nondisclosure, to terminate this contract, disqualify the Contractor from subsequent related contractual efforts, or pursues any remedy permitted by law or this contract.

(End of clause)

PD 33-01 - AGENCY LEVEL PROTESTS (APRIL 14, 2014)

An interested party filing a protest with Defense Health Agency (DHA) has the option of requesting review by either the Contracting Officer (CO) or an Independent Review Official (IRO), who is a DHA official at a level above the CO. Alternately, an interested party may request IRO review as an appeal of the CO's protest decision.

Where applicable, an interested party must clearly state in the protest that IRO review is requested, and must specify the nature of the independent review sought - whether as an alternative to CO review or as an appeal of the CO's decision.

Regardless of which review is requested, all protests must be complete and submitted to the CO within the time frames specified in FAR Subpart 33.1.

(End of Clause)

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-27	Prohibition on a ByteDance Covered Application.	Jun 2023		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services.	Nov 2023		
52.222-41	Service Contract Labor Standards.	Aug 2018		
52.222-50	Combating Trafficking in Persons.	Nov 2021		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.224-3	Privacy Training.	Jan 2017		
52.224-3	Privacy Training. (Alternate I)	Jan 2017	Alternate I	Jan 2017
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award.	Aug 1996		
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004		
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities.	Nov 2024		
52.245-1	Government Property.	Sep 2021		
52.246-4	Inspection of Services - Fixed-Price	Aug 1996		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.222-7002	Compliance with Local Labor Laws (Overseas).	Jun 1997		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.233-7001	Choice of Law (Overseas).	Jun 1997		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services. (Jan 2025)

CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☐ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☐ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☐ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

- ☐ (ii) Alternate I (DEC 2023) of 52.204-30.
- ☐ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).
- ☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).
- ☐ (14) [Reserved].
- ☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).
- ☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- ☐ (17) [Reserved]
- ☐ (18)
- (i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-6.
- ☐ (19)
- (i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-7.
- ☐ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025)(15 U.S.C. 637(d)(2) and (3)).
- ☐ (21)
- (i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).
- ☐ (ii) Alternate I (NOV 2016) of 52.219-9.
- ☐ (iii) Alternate II (NOV 2016) of 52.219-9.
- ☐ (iv) Alternate III (JUN 2020) of 52.219-9.
- ☐ (v) Alternate IV (JAN 2025) of 52.219-9.
- ☐ (22)
- (i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-13.
- ☐ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).
- ☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).
- ☐ (26)

(i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (MAR 2020) of 52.219-28.

☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

☐ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

☐ (31) 52.222-3, Convict Labor (JUN 2003) (E.O.11755).

☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2025)(E.O. 13126).

☐ (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

☐ (34)

(i) 52.222-26, Equal Opportunity (SEP 2016) (E.O.11246).

☐ (ii) Alternate I (FEB 1999) of 52.222-26.

☐ (35)

(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (JUL 2014) of 52.222-35.

☐ (36)

(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (JUL 2014) of 52.222-36.

☐ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

☐ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

☐ (39)

(i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☐ (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

- ☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671).
- ☐ (47)
- (i) 52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).
- ☐ (ii) Alternate I (JAN 2017) of 52.224-3.
- ☐ (48)
- (i) 52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (OCT 2022) of 52.225-1.
- ☐ (49)
- (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ☐ (ii) Alternate I [Reserved].
- ☐ (iii) Alternate II (JAN 2025) of 52.225-3.
- ☐ (iv) Alternate III (FEB 2024) of 52.225-3.
- ☐ (v) Alternate IV (Oct 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- ☐ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).
- ☐ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).
- ☐ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

- ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☐ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).
- ☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).
- ☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).
- ☐ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
- ☐ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).
- ☐ (65)
- (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).
- ☐ (ii) Alternate I (APR 2003) of 52.247-64.
- ☐ (iii) Alternate II (NOV 2021) of 52.247-64.
- (c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:
- ☐ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).
- ☐ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☐ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).
- ☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- ☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).
- ☐ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
- ☐ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
- ☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).
- ☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii) (A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi) (A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.217-8 Option to Extend Services.

(Nov 1999)

OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 calendar days. [insert the period of time within which the Contracting Officer may exercise the option].

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 60 [insert the period of time within which the Contracting Officer may exercise the option]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five years. (months) (years).

(End of clause)

52.232-1 Payments

(Apr 1984)

PAYMENTS

The Government shall pay the Contractor, upon the submission of proper invoices or vouchers, the prices stipulated in this contract for supplies delivered and accepted or services rendered and accepted, less any deductions provided in this contract. Unless otherwise specified in this contract, payment shall be made on partial deliveries accepted by the Government if-

(a) The amount due on the deliveries warrants it; or

(b) The Contractor requests it and the amount due on the deliveries is at least \$1,000 or 50 percent of the total contract price.

(End of clause)

List of Attachments

Number	Attachment Name	Attachment Description	Reference Identifier	Date	Line Item
01	Attachment 1 PWS OSBP Support 08212025	Performance Work Statement		21 Aug 2025	
02	Attachment 2 CDRL Combined OSBP Support	Contract Data Requirements List (CDRL)		25 Jul 2025	
03	Attachment 3 Pricing Sheet HT001125RE003	Pricing Sheet		21 Aug 2025	
04	Attachment 4 Past Performance Questionnaire	Past Performance Questionnaire		15 Aug 2025	

Representations, Certification, & Other Statements

PD 03-03 ENCLOSURE 1 - IMPROPER BUSINESS PRACTICES AND PERSONAL CONFLICTS OF INTEREST (AUGUST 21, 2014)

INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.[X].1 The Offeror's attention is directed to FAR, Part 3 and DFARS, Part 203, "Improper Business Practices and Personal Consultant Conflicts of Interest."

L.[X].2 252.203-7005 Representation Relating to Compensation of Former DoD Officials (Nov 2011)

(a) Definition. "Covered DoD official" is defined in the clause at 252.203-7000, Requirements Relating to Compensation of Former DoD Officials.

(b) By submission of this offer, the offeror represents, to the best of its knowledge and belief, that all covered DoD officials employed by or otherwise receiving compensation from the offeror, and who are expected to undertake activities on behalf of the offeror for any resulting contract, are presently in compliance with all post-employment restrictions covered by 18 U.S.C. 207, 41 U.S.C. 2101-2107, and 5 CFR parts 2637 and 2641, including Federal Acquisition Regulation 3.104-2.

(End of provision)

L.[X].3 Use of Former DoD/Defense Health Agency (DHA) Employees and Uniformed Service Members in Proposal Preparation.

The involvement of a former DoD/DHA employee/member in an offeror's proposal preparation may give rise to an unfair competitive advantage or the appearance thereof, if the former DoD/DHA employee/ member acquired nonpublic, competitively useful information in his or her former position. Such knowledge could include proprietary information of competitor's performance on past or current contracts with similar requirements or source selection sensitive information pertaining to this procurement. Consequently, the Offeror must notify the Contracting Officer prior to the involvement in the proposal preparation by a former DoD/DHA employee/member reasonably expected to have had access to such information. Based on the notification, the Contracting Officer will make a determination whether involvement of the former DoD/DHA employee/member in proposal preparation could create an unfair competitive advantage or appearance thereof. The Contracting Officer will further determine whether any mitigation measures taken or proposed by the offeror are adequate to alleviate this concern or whether the offeror will be disqualified from the competition. Failure to comply with these procedures may result in the offeror's disqualification for award.

(End of provision)

PD 09-01 ENCLOSURE 2 - ORGANIZATIONAL CONFLICTS OF INTEREST (APRIL 23, 2015)

INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.[X].1 The Offeror's attention is directed to FAR, Subpart 9.5, "Organizational and Consultant Conflicts of Interest."

L.[X].2 For the purpose of these provisions, the term "Offeror" means the offeror, its subsidiaries, affiliates, partners, marketing consultants, as defined by FAR, Subpart 9.501, or any of its successors or assignees. L.[X].3 It is the position of DHA that the following companies, due to the nature of their performance with DHA, have an actual or potential organizational conflict of interest, which must be avoided, neutralized, or mitigated.

L.[X].4 The Offeror is hereby notified that the nature of the work to be performed may create an actual or potential organizational conflict of interest in future acquisitions. The contractor will participate in the evaluation of the proposals, products or services of other companies. To avoid conflicts which may create bias ground rules, impair the contractor's

objectivity, or give the contractor an unfair competitive advantage, it is agreed that the contractor is precluded from award of any supply or service contract or subcontract related to said technical evaluations. This restriction shall be effective for one year after expiration of contract awarded under this solicitation.

L.[X].5 The Offeror shall represent in writing within the proposal that, to the best of the Offeror's knowledge, there are no relevant facts or circumstances concerning any past, present, or potential contracts or financial interest relating to the work to be performed, which could give rise to an organizational conflict of interest, as described in FAR, Subpart 9.5. In the event an actual or potential organizational conflict of interest exist, the Offeror shall submit a mitigation plan to the Contracting Officer, no later than [Fill-in: number] calendar days prior to the proposal due date, that effectively demonstrates how the Offeror will mitigate any actual or potential organizational conflict of interest while supporting this contract and any other DHA contract. As a part of the proposal, the Offeror shall provide the Contracting Officer with information of previous or ongoing work that is in any way associated with this solicitation.

L.[X].6 The Contracting Officer will review all mitigation plans to determine whether award to the Offeror is consistent with FAR, Subpart 9.5. If the Contracting Officer determines that no conflict would arise or that the mitigation plan adequately protects the interest of the Government, the Offeror will be eligible for award. If the Contracting Officer determines that the mitigation plan is inadequate, remedial actions will be considered, including elimination from the solicitation process, termination of related contract efforts already awarded, or negotiation of the mitigation plan.

L.[X].7 The above restrictions shall be included in all subcontracts, teaming arrangements, and other agreements calling for performance of work which is subject to the organizational conflict of interest restrictions identified in these provisions.

L.[X].8 The Offeror acknowledges the full force and effect of these provisions. The above provisions may be modified or deleted at the discretion of the Government. The Government reserves the right, in case of a breach, misrepresentation or nondisclosure, to terminate the resultant contract, disqualify the Offeror from subsequent related contractual efforts, or pursues any remedy permitted by law, regulation or the terms and conditions of this solicitation.

(End of provision)

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.212-3	Offeror Representations and Certifications-Commercial Products and Commercial Services. (Alternate I)	(May 2024)	Alternate I	(Feb 2024)
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Alternate I (FEB 2024). As prescribed in 12.301 (b)(2), add the following paragraph (c)(12) to the basic provision:

(12) (Complete if the offeror has represented itself as disadvantaged in paragraph (c)(5) of this provision.)

☐ Black American.

☐ Hispanic American.

☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).

☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).

☐ Individual/concern, other than one of the preceding.

**52.204-24 Representation Regarding Certain Telecommunications and Video
Surveillance Service or Equipment**

Nov 2021

**REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEL SURVEILLANCE (Nov 2021)
SERVICE OR EQUIPMENT**

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) Representation. The Offeror represents thatâ€”

(1) It ___ will, ___ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section;

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d) (1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d) (2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 Covered Telecommunications Equipment or Services-Representation

(Oct 2020)

COVERED TELECOMMUNICATINOS EQUIPMENT OR SERVICES - REPRESENTATION (COT 2020)

(a) Definitions. As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) (1) Representation. The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

Instructions, Conditions, & Notices to Offerors or Quoters

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.201-1	Acquisition 360: Voluntary Survey.	Sep 2023		
52.204-7	System for Award Management.	Nov 2024		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services.	Sep 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		

Evaluation Factors for Award

FAR Clauses Incorporated by Full Text

Addendum to FAR 52.212-1 Instructions to Offerors - Commercial Items (revision)

The subparagraphs below in FAR 52.212-1 are revised as follows:

52.212-1(c), Period for Acceptance of Offers, is replaced as follows: The offeror agrees to hold the prices in its proposal firm for 120 calendar days from the date specified for receipt of proposal.

52.212-1(e) Multiple Offerors, is replaced as follows: Single Offer. Respondents shall submit one offer presenting terms and conditions for commercial items/services satisfying the requirements of this solicitation. In the event a respondent submits more than one offer, only the last complete offer submitted prior to the due date and time for offers will be evaluated.

52.212-1(i), Debriefing, is replaced as follows: Debriefing. When requested by an unsuccessful offeror, a brief explanation of the basis for the award decision shall be provided pursuant to FAR 8.405-2(d).

52.212-1(b), Submission of Offers, is amended, adding subsequent paragraphs below:

12. PRE-CLOSING INQUIRIES. All questions concerning this RFP shall be submitted by September 1, 2025, 4pm EST, to Contract Specialist Mary Anne Young at mary.a.young138.ctr@health.mil and Contracting Officer Vicki L. Whiteman at vicki.l.whiteman.civ@health.mil. Responses to inquiries will be provided in the form of a Notice or an Amendment and posted. The Government need not respond to inquiries submitted after the question due date. It is the Offeror's responsibility to bring to the attention of the contracting officer at the earliest possible time, but prior to the closing date, any ambiguities, discrepancies, inconsistencies, or conflicts between the PWS and other solicitation documents attached hereto or incorporated by reference.

13. RESTRICTIONS ON DISCLOSURE AND PROPRIETARY INFORMATION. Offerors are responsible for providing proper legends or markings on the information provided to the Government to clearly identify proprietary or confidential business information that have restrictions on disclosure. All submissions should be well-marked to clearly indicate any special handling instructions.

14. NO UNNECESSARY ELABORATION AND FORMATTING. Elaborate brochures or documentation, bindings, detailed artwork, pictures, or other embellishments are unnecessary and are not desired.

15. PROPOSAL CONTENT AND SUBMISSION INSTRUCTIONS: To ensure timely and equitable evaluation of proposals, Offerors must follow the instructions contained herein. Failure to follow the RFP's instructions may result in the offer being excluded from consideration for award. Offerors are required to meet all RFP requirements, including terms and conditions, representations and certifications, and technical requirements, in addition to those identified as evaluation factors. Offerors must clearly identify any exception to the solicitation terms and conditions and provide complete accompanying rationale.

16. FORMAT FOR SUBMISSION:

- (a) Each offer shall be legible, single-spaced, Times New Roman font, no smaller than 12 font size, no less than 1-inch margins, which can be printed on 8 ½ x 11-inch paper. Tables, charts, graphics or similar items shall not contain any font size less than 8.
- (b) The acceptable electronic formats are Adobe PDF or Microsoft Word except for pricing and questions. Pricing tables shall be submitted in Microsoft Excel (as shown in the pricing worksheet provided). All Adobe PDF documents, and Microsoft Word/Excel documents shall be submitted with the ability to highlight and copy the text/data of the document. Any documents submitted that are protected in such a way which does not enable the ability to highlight/copy/paste the text/data will not be accepted. All Microsoft Word/Excel documents shall be fully readable by Microsoft Office Version 2013.
- (c) For any sections of an offer with a defined page limit, pages exceeding the specified limit will be removed and not considered in evaluation.
- (d) The completion and submission of an offer to the Government shall indicate the offeror's unconditional agreement to the terms and conditions in this RFP unless exceptions are specifically addressed in the offer submission. Any exceptions to the terms and conditions of RFP should be included in Cover Letter in Part I. as part of your proposal.

17. OFFER SUBMISSION: Only emailed submissions will be accepted. Any subsequent instructions contained herein referring to written requirements shall be construed as documentation that is submitted electronically. The offer shall consist of four (4) distinct parts listed below:

PART I – Summary/Administrative

PART II – Technical

PART III – Past Performance

PART IV – Price

The following table summarizes the proposal submission:

	<u>Document Title</u>	<u>Page Limit</u>
Part I	Summary/Administrative	See Below
	Submission Cover Letter	3
	Master Table of Contents	No Limit
	SF 1449	
	- Fill-ins for RFP Provisions	No Limit
	- Completed Reps & Certs if not in SAMS	No Limit
	- Acknowledged Amendments	No Limit
Part II	Technical Submission + 1 Redacted copy	10
	- Key Personnel	
	- Staffing Plan	
	- Transition Plan	
	- Management and Quality Assurance Approach	
	Table of Contents	No Limit
	Experience & Personnel Qualifications/Resumes	No Limit
Part III	Past Performance Submission	5
	Excluded from 5-page limit are any letters, metrics, customer surveys, independent surveys, PPQs and Separately Submitted	No Limit
	Past Performance Questionnaires	
Part IV	Price Submission	No Limit
	Table of Contents	No Limit
	Pricing Sheet Template	Prices in Supplied
		Template Only

18. REQUIRED CONTENTS. Each Part is described in the sections directly below.

(a) **PART I – SUMMARY/ADMINISTRATIVE SUBMISSION.** Submit original electronic copy, no additional copies required.

(1) Cover Letter (3-page limit). Offeror shall submit a cover letter separate from Parts II, III, and IV. The cover letter shall include a brief summary and provide a point of contact (POC) (include name, title, email and phone number) who is authorized to conduct negotiations on behalf of the vendor and should demonstrate the offeror's intent to be bound to any resultant award for this RFP.

(2) Master Table of Contents (No page limit). Include a master table of contents of the entire proposal.

(3) Standard Form (SF) 1449. Complete blocks 12, 17a, 30a, 30b, and 30c. In doing so, the offeror accedes to the terms and conditions as written in the solicitation.

(4) Provisions/Representations and Certification Fill-ins. Complete the necessary fill-ins and certifications in RFP provisions and in the on-line Representations and Certifications at www.sam.gov. For other provisions and clauses in the RFP, the offeror is required to submit the pages that require an offeror fill-in.

(5) RFP Amendments. Submit an acknowledgment of all the RFP amendments, if issued.

(b) **PART II – TECHNICAL SUBMISSION** (10-page limit, excluding specific plans identified below with separate page limits, no page limit for resumes): Consists of a technical offer in narrative format addressing the items in the chart below. Include one (1) additional redacted copy to exclude the company name. The PWS (RFP Attachment 1) is representative of the overall requirements. The offeror is to submit a technical offer clearly articulating HOW they intend to achieve their offered technical solution by addressing each of the subparagraphs below, ensuring their responses are in the same order listed below.

(1) The offeror's Technical (Non-Price) offer shall reflect how it proposes to comply with the performance requirements identified in the chart below. The Technical (Non-Price) offer, including any supporting documentation is to be clear and concise. A complete offer shall address all items in the Instructions to Offerors. The Technical (Non-Price) offer shall be a clear articulation of how the offeror will achieve the objectives and tasks of the PWS as articulated in the chart below.

Section Name	Section Instructions
Factor 1 Sub-factor 1: Key Personnel	Describe the Contract/Program Manager candidate(s), including experience and resume of primary and alternate, and their ability to accomplish the tasks identified in the PWS.
Factor 1 Sub-factor 2: Staffing Plan	Describe the planned approach to comply with the staffing plan requirements identified in PWS Section 5.8. A. Identify the intended labor categories and staffing levels to be relied on for each CLIN under the contract. B. Describe your proposed policy and approach as it relates to recruitment and retention of contract personnel, to successfully complete the tasks defined in the PWS.
Factor 1 Sub-factor 3: Transition Plan	A. Demonstrate an approach for assuming full contractual responsibilities without disruption during the transition-in period. See PWS Section 1.6.1 B. Demonstrate an approach for fully performing under the contract without disruption during the transitioning-out period. See PWS Section 1.6.1
Factor 1 Sub-factor 4: Management and Quality Assurance Approach	Describe a quality control plan as referenced in PWS Section 1.10.1 for managing, monitoring and maintaining quality control under the contract to support the tasks defined in the PWS.

(c) **PART III – PAST PERFORMANCE SUBMISSION** (5-page limit): Past performance references are limited to no more than the past three (3) years, including references for subcontractors and joint venture partners. Submit an original electronic copy, no additional copies required. Submit evidence of past performance to include the following:

(1) Recent and Relevant Contract References. Offerors shall provide a written narrative discussing at least three but no more than five recent contract references for any customer (federal or state government, commercial or private sector) which the offeror considers relevant in demonstrating their ability to perform the RFP requirements. A recent contract must have been performed within the last three (3) years from the issuance date of this the RFP. A relevant contract is for services that are for the same or similar requirements in this RFP in terms of magnitude, scope, and complexity, as aggregated together. Ensure submittal of Attachment 4 – Past Performance Questionnaire, are submitted by your references timely as directed in the Attachment.

(2) If an offeror has no past performance history of relevance, the offeror must state affirmatively it possesses no past performance history of relevance.

(d) **PART IV – PRICE SUBMISSION** (No page limit). Submit original electronic copy, no additional copies required, using the Pricing Sheet Template provided as Attachment 3 to the solicitation. Note: The Offeror shall not include any pricing data of any kind in any other part of the proposal submission (i.e., Part II, Technical Submission, and Part III, Past Performance).

(End of Addendum)

52.212-2 Evaluation-Commercial Products and Commercial Services.**(Nov 2021)**

Evaluation-Commercial Products and Commercial Services (Nov 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered, and a trade off analysis will be conducted. The following factors shall be used to evaluate offers: Technical, Past Performance and Price. It may be in the best interest of the Government to consider award to other than the lowest priced offeror or other than the highest technically rated offeror. Technical and Past Performance are equal in importance. Technical and Past Performance, when combined, are significantly more important than Price

Technical factors will be evaluated and rated based on the following adjectival ratings:

Adjectival Rating Description

Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

Past Performance relevancy and confidence assessment will be evaluated and rated based on the following adjectival ratings:

Adjectival Rating Description

Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

Adjectival Rating Description

Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.

Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

Factor I - Technical Approach: The Technical Approach will be evaluated based on the Offeror's demonstrated ability to perform the requirements of the PWS. The following four sub-factors are of equal importance and will be individually rated:

Sub-factor 1: Key Personnel (PWS 1.12)

The Government will evaluate the resumes of the proposed key personnel to determine whether they meet the minimum qualifications and experience levels, as set forth in PWS Section 1.12, and the availability of the proposed Contract/Program Manager and designated alternate. Note: the resumes should clearly describe how the proposed key personnel met the minimum experience and qualification requirements. In addition, the government will evaluate the extent to which the resume demonstrates relevant leadership experience, ability to manage multiple functional areas, and proposed personnel's ability to meet the responsibilities identified in PWS Section 1.12.

Sub-factor 2: Staffing Plan (PWS 5.8)

The Government will assess the adequacy and feasibility of the Offeror's staffing plan, including proposed staffing levels and labor categories, to successfully complete the tasks throughout the PWS. Evaluation will include the Offeror's ability to maintain required staffing levels and fill vacancies in a timely manner.

Sub-factor 3: Transition Plan (PWS 1.6.1.1 and 1.6.1.2)

The Government will evaluate the Offeror's approach to both transition-in and transition-out. A successful proposal will demonstrate a clear, realistic, and low-risk plan for ensuring continuity of services without performance degradation or disruption.

Sub-factor 4: Management and Quality Assurance (QA) Approach (PWS 1.10)

The Offeror's approach to managing, monitoring and maintaining quality control to ensure quality for effective contract performance will be evaluated. This includes the Quality Control Plan (QCP), as referenced in PWS Section 1.10.1, and the Offeror's ability to proactively monitor, correct, and prevent performance issues.

Factor II - Past Performance: The Government will consider the Offeror's record of relevant and recent performance on similar contracts as noted below. Only performance under relevant and recent records will ultimately be assessed as to their quality in arriving at the overall past performance rating. The evaluation will follow a process:

1. **Relevance** – The government will determine whether the past efforts are similar in magnitude, scope, and complexity, as aggregated together, to this requirement. If they are, the quality (i.e., how well the offeror performed under the effort) of the past efforts will then be assessed, if they are also recent. Note: Offerors with no recent past or present performance history or the offeror's performance record is so limited that no confidence assessment rating can be reasonably assigned will receive a rating of "Neutral Confidence," meaning the offeror is treated neither favorably nor unfavorably (neutral). For the purpose of evaluation, a "Substantial Confidence" or "Satisfactory Confidence" past performance rating is worth more than a "Neutral Confidence" rating with regards to the tradeoff analysis and best value determination.

2. **Recency** – The Government will determine whether the past performance efforts are within the last three (3) years from the date of the solicitation. If they are, the past efforts will be assessed as to the relative quality of the past performance, if they are also relevant.

3. **Quality** – The government will assess the quality of offeror's past performance based on the reference feedback available to the Government. Additionally, the government may use CPARS and other sources of information available to the government to assist in assessing confidence on one or more of the past efforts.

4. **Confidence Assessment** - An evaluation of how well the Offeror performed (i.e., the "quality" of the past performance) on the identified relevant contracts.

Factor III - Price: Price proposals will be evaluated for reasonableness in accordance with FAR 15.404-1. Price will not be assigned an adjectival rating. Price proposal shall only include the required pricing sheet provided as an attachment to the solicitation. Please note: Travel CLINS in the pricing sheet are pre-priced and should not be changed.

While the Government does not intend to engage in interchanges, the Government reserves the right to conduct interchanges if deemed in its best interest. However, Offerors are reminded that the Government may make award based solely on initial Offers.

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)